

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: August 20, 2026

#	Case Name	Tentative
1.	30-2026-01563477 Porras vs. American Honda Motor Co. Inc	1. Motion to Strike-Anti SLAPP Based on applicable law, and as set forth herein, Defendant American Honda Motor Co., Inc.’s (“Defendant”) Special Motion to Strike Pursuant to CCP § 425.16 is GRANTED. “Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit. If the plaintiff cannot make this showing, the court will strike the claim.” (<i>Bonni v. St. Joseph Health System</i> (2021) 11 Cal.5th 995, 1009 (<i>Bonni</i>) (internal citations omitted).) In determining whether the plaintiff’s claims arise from protected activity, “courts are to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity.” (<i>Ibid.</i> (internal citations omitted).) Further, a special motion to strike under the anti-SLAPP statute need not challenge an entire cause of action as pleaded in the complaint; rather, courts should analyze each claim for relief--each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action--to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion. (<i>Musero v. Creative Artists Agency, LLC</i> (2021) 72 Cal.App.5th 802, 815 (citing <i>Bonni, supra</i>).) Here, Defendant moves to strike the following language from Plaintiff’s third cause of action for Violation of Business & Professions Code §17200: “Trying to coerce Plaintiff and other members of the public to sign confidentiality clauses.” (Compl. ¶ 44(5).) Defendant has submitted evidence that “With respect to individual owners and lessees of Honda vehicles, such as Plaintiff, Defendant AHM only bargains for confidentiality clauses in the course of negotiating agreements to settle and release claims, and those negotiations only take place when a lawsuit has already commenced or when AHM is aware of a customers’ dispute and believes that a lawsuit may be filed.” (Pacheco Decl. ¶ 7.) Plaintiff has not filed an opposition to the motion, and therefore is deemed to have conceded that this activity is what the allegation refers to. (<i>See, e.g., DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 (“By failing to argue the contrary, plaintiffs concede this issue”).) The anti-SLAPP statute identifies four categories of protected activity. Of relevance here, section 435.16(e)(2) includes “any written or oral statement or writing made in connection with an issue under consideration or review by a . . . judicial body.” (CCP § 425.16(e)(2).) Courts have construed that subsection to include claims arising out of settlement negotiations preceding

		the filing of a lawsuit as protected activity for anti-SLAPP purposes. (<i>Bonni</i> (2021) 11 Cal.5th at 1024.) As Defendant has met his burden and demonstrated that the Complaint arises from protected activity, the burden shifts to Plaintiff to demonstrate that his or her claims are legally sufficient and factually substantiated. (<i>Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism</i> (2018) 23 Cal.App.5th 28, 49.) “To meet this burden, a plaintiff cannot rely on its own pleading, even if verified...but must present admissible evidence.” (<i>Ibid.</i>) Plaintiff did not file an opposition to the motion and therefore has presented no evidence to support the allegations of her complaint. Accordingly, the motion is granted. Defendant to give notice.
2.	30-2025-01464449 Taylor vs. The City of Fullerton	1. Motion for Continuance of Trial Based on the Joint Stipulation to Continue Trial Date and Related Discovery and Motion-Cut Off Dates, the Jury Trial scheduled for 11/09/2026 is CONTINUED to 05/10/2027 at 09:00 AM in Department C34. All related discovery, motion deadlines and trial related dates will be based on the new trial date. Based on the Joint Stipulation to Continue Trial Date and Related Discovery and Motion-Cut Off Dates, the Motion for Continuance of Trial set for 08/20/2026 at 1:30PM in Department C34 is VACATED. Clerk to give notice.
3.	30-2024-01443133 ESC-TOY LTD. vs. Maschoff Brennan Gilmore & Israelsen	1. Case Management Conference 2. Motion to Compel Production 3. Motion to Compel Further Responses to Special Interrogatories 4. Motion to Compel Production No tentative rulings. Counsel should appear – remotely or in person- and be prepared to discuss: (1) appointment of a discovery referee and (2) the status of any request for stay pending the Federal case.
4.	30-2024-01402013 Lara vs. Volkswagen Group of America, Inc	1. Motion to Compel Deposition (Oral or Written) Defendant Volkswagen Group of America, Inc. (“Defendant” or “VWGoA”) moves the Court for an Order compelling Plaintiff Norma Lara to appear for a deposition by remote electronic means and produce documents within fifteen (15) days, or a date that the Court otherwise deems appropriate. Pursuant to CCP§2025.450 (a), “if, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for

		inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Here, on April 29, 2026, Defendant served its Notice of Deposition of Norma Lara (“NOD”), noticing the remote deposition for May 18, 2026. (Decl. of Konrad¶4.) On May 11, 2026, Plaintiff Norma Lara electronically served objections to the NOD, indicating that Plaintiff Norma Lara will not appear for the deposition due to unavailability and to meet and confer with counsel to schedule the deposition on a mutually agreeable date. (Id¶5.) On May 28, 2026, Attorney Konrad sent meet and confer correspondence via e-mail to Plaintiff’s counsel, requesting Plaintiff provide availability by June 4, 2026 for the deposition to go forward on or before June 26, 2026. (Id.¶6). On June 4, 2026, around 6:30 p.m., Plaintiff’s counsel advised that Plaintiffs were available for deposition on July 31, 2026. (Id¶8.) At that time, the discovery cut off was August 8, 2026. This motion was filed 6/9/2026. Here, Plaintiff has the burden to establish that her objection to the Deposition notice has merit. Plaintiff has not sustained that burden, nor has she established how offering one date, two months after the original deposition date, and 9 days before the discovery cut off date, was a reasonable compromise. In the reply, Defendant indicates there has been a trial continuance so the depositions of Plaintiff Norma Lara and Plaintiff Manuel Lara have been noticed for September 17, 2026, on a date mutually agreed upon by counsel. (Supp. Konrad Decl., ¶¶ 4-6; Exs. A-B.) However, Defendant does not consider the motion moot as it has no assurance that Plaintiff will appear on September 17, 2026 absent an order of this Court. Based on applicable law and the facts herein, the Motion is GRANTED and Plaintiff Norma Lara is ordered to appear at her deposition on the date agreed to by the parties- September 17, 2026. No sanctions were requested. Defendant to give notice.
5.	30-2023-01361390	1. Motion for Terminating Sanctions Norris vs. Chavez-Nambo Defendant Diana Angelica Chavez-Nambo (“Defendant”) moves for an order imposing terminating sanctions against plaintiff Diona Shunte Norris (“Plaintiff”) and dismissing this action with prejudice. The Court may impose a monetary, issue, evidence, or terminating sanction against any party engaging in misuse of the discovery process. (Code Civ. Proc., § 2023.030.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is

		willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) On October 30, 2025, the Court granted Defendant’s motion to compel Plaintiff’s responses to Special Interrogatories, ordering Plaintiff to provide responses within 30 days and pay \$500.00 in sanctions within 30 days as well. On January 15, 2026, the Court granted Defendant’s motion to compel responses to Request for Production of Documents and ordered Plaintiff to pay an additional \$500.00 in sanctions. Defendant’s motion to compel responses to Form Interrogatories was granted on January 22, 2026 with an additional \$350.00 in sanctions imposed. To date, Plaintiff has not complied with these numerous court orders, nor has Plaintiff filed an opposition to this motion. Plaintiff has disobeyed the Court’s orders without substantial justification. Plaintiff is to appear, remotely or in person, if they wish to present any justification for why the ultimate sanction of termination is not warranted.
6.	30-2024-01371125 Bicknell vs. Hill Commercial Investments, Inc	1. Case Management Conference 2. Motion to Compel Production 3. Motion to Compel Production Defendant Hill Commercial Investments, Inc. (“Defendant”) moves for an order: (1) compelling Plaintiffs Darwin Bicknell and Lissa Bareno (“Plaintiffs”) to serve initial responses to Defendant’s second set of Requests for Production of Documents; and (2) imposing monetary sanctions against Plaintiffs’ counsel, Steven Tamer. Code of Civil Procedure section 2031.300 states that if a party to whom a demand for inspection “fails to serve a timely response to it,” the party waives any and all objections and the propounding party may move for an order compelling responses to the interrogatory or demand. (Code Civ. Proc., § 2031.300(a)-(b).) This section also states that “the court shall impose a monetary sanction . . . against any party, person or attorney who unsuccessfully makes or opposes a motion . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300(c).) Defendant electronically served the written discovery on Plaintiffs on December 15, 2025. (Declarations of Khoa D. Nguyen, ¶ 3.) As of the January 20, 2026 filing of the motions, Plaintiffs had not served any responses. (<i>Id.</i>, ¶ 5.) In light of the above, Defendant’s unopposed Motions are GRANTED. Plaintiffs are ORDERED to serve verified responses, without objections, within 15 days. The Court finds no substantial justification for Plaintiffs’ failure to serve responses. Thus, the Court GRANTS Defendant monetary sanctions against Plaintiffs’ counsel, Steven Tamer, in the reduced amount of \$800 (2 hrs at \$400/hr), to be paid within 30 days to Defendant’s counsel. Defendant to give notice.

7.	30-2024-01395268 Bump vs. Bitetto’s Tow & Service Center, Inc	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Production 3. Motion to Compel Production 4. Motion to Deem Facts Admitted <u>Motion to Compel – Special Interrogatories and Requests for Production, Set Three</u> Plaintiff, Joel Bump (“Plaintiff”), moves for an order compelling Defendant, Sergio Ramirez (“Ramirez”), to provide verified responses to Plaintiff’s Special Interrogatories Set Three, Nos. 53-60, as well as to provide verified responses to Plaintiff’s Requests for Production of Documents, Set Three, Nos. 31-38. If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §§ 2030.290(a)-(b); 2031.300(a)-(b).) By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2030.290(a); <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.) Similarly, if a party fails to serve a timely response to requests for production, all objections are waived. (Code Civ. Proc. § 2031.300(a).) Here, Plaintiff’s counsel provides that Plaintiff’s Special Interrogatories, Set Three, and Requests for Production of Documents, Set Three, were served on Defendant Ramirez on or about July 29, 2025, and that despite granting multiple extensions to provide responses, to date, i.e., January 15, 2026, Defendant Ramirez has not provided responses to this discovery. (ROA 329, 334, Declaration of Christopher L. Hendricks, ¶¶ 2-6, Exs. 1-4.) Plaintiff’s Motions to Compel are GRANTED. Defendant Ramirez to serve verified, objection-free responses to Plaintiff’s Special Interrogatories Set Three, Nos. 53-60, and Plaintiff’s Requests for Production of Documents, Set Three, Nos. 31-38 within 30 days. <u>Motion to Compel – Requests for Production, Set One</u> Plaintiff moves for an order compelling Defendant Ramirez to provide verified responses to Plaintiff’s Requests for Production of Documents, Set One, Nos. 1-27. Plaintiff’s counsel provides that Plaintiff’s Requests for Production of Documents, Set One, was served on Defendant Ramirez on or about September 17, 2024, and that despite granting multiple extensions to provide responses and communicating with both Ramirez’s original counsel and associated counsel, to date, i.e., January 15, 2026, Defendant Ramirez has not provided responses to these Requests for Production. (ROA 340, Declaration of Christopher L. Hendricks, ¶¶ 2-14, Exs. 1-12.) Plaintiff’s Motion to Compel is GRANTED. Defendant Ramirez to serve verified, objection-free responses to Plaintiff’s Requests for Production of Documents, Set One, Nos. 1-27 within 30 days. (Code Civ. Proc. § 2031.300(a)-(b).) ///
----	--	---

		<u>Motion to Deem Requests for Admission, Set One, Admitted</u> Plaintiff Bump moves for an order deeming Plaintiff's Requests for Admission, Set One, Nos. 1-39 <i>admitted</i> as to Defendant, Sergio Ramirez. Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc. § 2033.280(a)-(b).) The court shall deem the matters admitted "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).) Like Plaintiff's motion to compel responses to Requests for Production, Set One, Plaintiff's counsel provides that Plaintiff's Requests for Admissions, Set One was served on Defendant Ramirez on or about September 17, 2024, and that despite granting multiple extensions to provide responses and communicating with both Ramirez's original counsel and associated counsel, to date, i.e., January 15, 2026, Defendant Ramirez has not provided responses to these Requests for Production. (ROA 353, Declaration of Christopher L. Hendricks, ¶¶ 2-14, Exs. 1-12.) No opposition has been filed and it appears that Defendant Ramirez has not served a proposed response to Plaintiff's Requests for Admission, Set One. As such, Plaintiff's Motion to Deem Requests for Admission, Set One, Nos. 1-39 admitted as against Defendant Ramirez is GRANTED. Pursuant to Code of Civil Procedure section 2033.280(c), "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion." Plaintiff's motion to deem requests for admission admitted states, "To the extent any sanctions are awarded by the Court, Plaintiffs request that they be issued to one of the applicable trial lawyers associations operating in the area like Orange County Trial Lawyers Association ('OCTLA') or Consumer Attorneys of California ('CAOC')." (ROA 337, Motion, 4:15-18.) Plaintiff does not cite to any authority for sanctions being awarded to anyone but the party that incurred the reasonable fees/expenses. However, as a monetary sanction is mandated, the Court awards a \$50 monetary sanction against Defendant Ramirez, to be paid to Plaintiff's counsel within 30 days. Plaintiff to give notice of all motions.
8.	30-2023-01360493 Lopez vs. Right Time Transport, LLC	1. Case Management Conference 2. Motion for Terminating Sanctions 3. Order to Show Cause re: Failure to Appear Plaintiff, Albert Lopez, moves for an order for terminating sanctions as to Defendants, Right Time Transport, LLC and Andy Tran, and for an award of monetary sanctions against

Defendants, jointly and severally in the amount of \$1,560. The Motion is **DENIED, in part, GRANTED, in part.**

Terminating Sanctions

If a party fails to obey an order compelling answers to interrogatories or an order compelling a response, “the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010),” and “[i]n lieu of or in addition to that sanction, the court may impose a monetary sanction.” (Code Civ. Proc. §§ 2030.290(c) [interrogatories]; 2031.300(c) [requests for production].)

Additionally, the court may impose a terminating sanction against anyone engaging in conduct that is a misuse of the discovery process by an order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process, an order staying further proceedings by that party until an order for discovery is obeyed, an order dismissing the action, or any part of that action, of that party, or an order rendering a judgment by default against that party. (Code Civ. Proc. § 2023.030(d).)

Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery,” and disobeying a court order to provide discovery. (Code Civ. Proc. § 2023.010(d), (g).)

A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 (“*Lopez*”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (*Ibid.*) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (*Ibid.*)

The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations].” (*Lopez, supra*, 246 Cal.App.4th at pp. 604-605.)

“A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction. [Citation.]” (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280.)

Here, Plaintiff provides that on or about June 5, 2025, Plaintiff’s eight motions to compel discovery responses (four as to each Defendant) and two motions to deem facts admitted (one as to each Defendant) came on for hearing and were granted. The Court ordered Defendants to provide response to all discovery and pay sanctions within 30 days. (Declaration of Allison M. Schulman (“Schulman Decl.”), ¶ 10, Ex. 4.) Defendants failed to comply with the Court’s June 5, 2025, Order, and to date, i.e., January 28, 2026, Defendants have never responded to this discovery and has never paid the sanctions. (*Id.*, ¶ 11.) Defendants have not participated in

discovery in this case and have not appeared at any Court hearing since June 20, 2024. (*Id.*, ¶ 14.)

Based on the foregoing, with regards to discovery, the evidence indicates a failure to respond to written discovery requests, and to comply with the Court's order for discovery. While these acts constitute a misuse of the discovery process, the Court finds these circumstances do not warrant terminating sanctions as a first measure without attempts at a less severe alternative.

To the extent that Defendants have failed and refused to appear at six Court appearances, five of which were Orders to Show Cause as to Defendants, this does not constitute a misuse of the discovery process or other failure to obey a court order to provide discovery responses. Although this might support that a lesser sanction would be ineffective, the Court declines to impose a termination sanction at this juncture. The motion for a terminating sanction is DENIED, without prejudice.

The Court ORDERS Defendants to comply with the Court's June 5, 2025 order for discovery, and to provide verified responses without objections, as well as pay monetary sanctions as ordered therein within 30 days.

Monetary Sanctions

The Court may impose a monetary sanction under Code of Civil Procedure sections 2030.290(c), 2031.300(c)

The Court may also impose a monetary sanction against any party or attorney, or both, who has engaged in a misuse of the discovery process, unless it finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2023.030(a).)

As stated above, Defendants have engaged in the misuse of the discovery process by failing respond to an authorized method of discovery and by failing to comply with the Court's June 5, 2026, Order. **The Court GRANTS a monetary sanction in the amount of \$1,560 against Defendants, Right Time Transport, LLC and Andy Tran, jointly and severally, to be paid within 30 days.** (Schulman Decl., ¶¶ 15-25.)

The Court notes that Defendants have not been represented by counsel since their prior counsel was relieved as counsel of record on or about June 20, 2024.

Defendant, Right Time Transport, LLC, is advised that it cannot represent itself. (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284 n.5.) Defendant, Right Time Transport, LLC must obtain representation or risk forfeiting important rights through nonrepresentation. (*Ibid.*) As Defendant, Right Time Transport, LLC must be represented by counsel, Defendant, Right Time Transport LLC is ordered to obtain counsel, and file evidence thereof, with the court within 30 days of the notice.

Additionally, the Court sets an **Order to Show Cause re: status of representation for Defendants, Right Time Transport, LLC and Anh ("Andy") Tran on October 1, 2026 at 10:30 am in Department C34.**

All parties are ORDERED to appear. As to Defendant, Right Time Transport, LLC, a representative or its new counsel is **ORDERED** to appear.

The Court orders clerk to give notice.

9.	30-2022-01266130 DFS Services, LLC vs. Paragon Relocation Resources, Inc	1. Motion for Entry of Judgment Plaintiff DFS Services, LLC (“Discover”), will and hereby does move for the entry of judgment on its claim for conversion against defendants Paragon Global Resources, Inc. (“Paragon Global”), Joseph Morabito, and Jim Davis. <i>Code Civ. Proc., § 578:</i> Judgment may be given for or against one or more of several plaintiffs, and for or against one or more of several defendants; and it may, when the justice of the case requires it, determine the ultimate rights of the parties on each side, as between themselves. <i>Code Civ. Proc., § 579:</i> In an action against several defendants, the Court may, in its discretion, render judgment against one or more of them, leaving the action to proceed against the others, whenever a several judgment is proper. Here, the Court granted Plaintiff’s Summary Adjudication in favor of Plaintiff on its Conversion cause of action against these Defendants. In that order, the Court also denied Discover’s motion for summary adjudication on its intentional interference with prospective economic advantage claim against Mr. Morabito. On January 16, 2026, Discover requested dismissal of its claim for intentional interference for with prospective economic advantage. (Belcher Decl. Ex. D.) As a result of Paragon Relocation’s bankruptcy petition, the Court’s order on Discover’s motion for summary adjudication, and Discover’s request for dismissal, the sole remaining issue to be tried is Paragon Relocation’s breach of contract claim against Discover. (Belcher Decl. ¶ 10.) However, litigation is ongoing and a cross-action for breach of contract remains before the Court and arises from the same transaction- the handling, application, and disposition of the same fund that form the basis of Plaintiffs conversion claim. (Belcher Decl. , 10, Ex. B [Cross-Complaint, 1-5, 22-28].) Responding Party (“RP”) argues that the factual overlap is substantial, and the remaining claims may directly bear on damages, offsets, and the ultimate equities between the parties. (Belcher Decl. Ex. B [Cross Complaint ¶4-5 17- 20, alleging \$262,217 in unpaid relocation expenses arising from same contractual relationship]; Belcher Decl. Ex. A [Complaint¶¶ 44-47, conversion claim based on same funds].) Finally, RP argues where unresolved claims remain intertwined with adjudicated claims, entry of judgment is not 'proper' within the meaning of section 579. (Code Civ. Proc., § 579.) Given that there are still claims pending between Cross-Complainant Paragon and Cross-Defendant Discover, the motion is DENIED. RP to give notice.
10.	30-2023-01318153 Feng vs. Feng	1. Motion-Other (by Interested Third Party William C. Kersten for an Order Releasing the \$139,375 Held in Trust to Defendant/Cross-Complainant Paul Ye-Chou Feng) William C. Kersten moves for an order allowing him to release \$139,375 held in the William C. Kersten trust account to defendant/cross-complainant Paul Ye-Chou Feng on the ground that he is no longer Paul’s attorney of record and it is not appropriate for him to be holding funds for Paul in this matter.

However, no valid substitution of attorney has been filed reflecting that Mr. Kersten is no longer Paul's counsel of record. While it appears that a substitution of attorney was submitted for filing on 6/4/26, it was rejected and no other substitution of attorney has been filed since. Thus, the argument that Mr. Kersten cannot appropriately continue to hold the client's funds in a trust account lacks merit.

Mr. Kersten also argues that the funds should be ordered released because the Court found that plaintiff/cross-defendant Rong Feng had breached the parties' Settlement Agreement by failing to use his best efforts to obtain Mrs. Feng's funds held in Taiwan in a timely manner.

The parties' Settlement Agreement provides that Rong shall receive 100% of Mrs. Feng's financial assets held at Cathey United Bank in Taiwan and Paul shall receive none. Rong shall pay \$278,750 in cash to the William C. Kersten Trust Account and 50% shall be immediately released to Paul and the remaining \$139,375 shall remain in the William C. Kersten Trust Account until Rong receives Mrs. Feng's Taiwan bank assets.

In a prior Motion to Enforce Settlement, Paul asked the Court to order the release of the \$139,375 held in trust. However, the Court declined to order immediate release of the funds as contrary to the parties' agreement. (ROA 316.) Mr. Kersten offers no additional legal authority in support of his argument that the funds should be released immediately. As the Court previously noted, both parties bear some responsibility for the delay in Rong's receipt of the Taiwan funds—Rong by failing to pay his portion of the retainer for Taiwanese counsel as agreed and Paul by failing to timely obtain his Taiwanese passport. The Court finds ordering the immediate release of the funds contrary to the parties' agreement when both parties are responsible for the delay in the condition precedent of Rong's receipt of the Taiwan funds being satisfied is not warranted under these circumstances.

Based on the above, unless there is sufficient proof provided that the condition precedent of Rong's receipt of the Taiwan funds has been satisfied, the Motion is **DENIED**.

Clerk to give notice.